

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

CASE OF ABROSIMOVA AND OTHERS v. RUSSIA

(Applications nos. 33196/22 and 29 others –
see appended list)

JUDGMENT

STRASBOURG

14 March 2024

This judgment is final but it may be subject to editorial revision.



In the case of Abrosimova and Others v. Russia,

The European Court of Human Rights (Second Section), sitting as a Committee composed of:

Lorraine Schembri Orland*, President*,
Frédéric Krenc,
Davor Derenčinović*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 15 February 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to the facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *decides* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 14 March 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Lorraine Schembri Orland President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expense per applicant/ household (in euros)[i]
1.	33196/22 06/06/2022	**Marina Vladimirovna ABROSIMOVA** 1967	Aleksey Vladimirovich Bushmakov Yekaterinburg	Anti-war protest Yekaterinburg 26/02/2022	article 20.2 § 5 of CAO	30 hours of community work	Sverdlovsk Regional Court 27/04/2022		3,500
2.	33202/22 06/06/2022	**Viktoriya Vladimirovna DOKUCHAYEVA** 2002	Aleksey Vladimirovich Bushmakov Yekaterinburg	Anti-war protest Yekaterinburg 06/03/2022	article 20.2 § 5 of CAO	35 hours of community work	Sverdlovsk Regional Court 19/05/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 06/03/2022 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
3.	33205/22 06/06/2022	**Margarita Sergeyevna DOKUCHAYEVA** 1982	Aleksey Vladimirovich Bushmakov Yekaterinburg	Anti-war protest Yekaterinburg 06/03/2022	article 20.2 § 5 of CAO	30 hours of community work	Sverdlovsk Regional Court 19/05/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 06/03/2022 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
4.	33212/22 06/06/2022	**Dmitriy Sergeyevich SMIRNOV** 1994	Aleksey Vladimirovich Bushmakov Yekaterinburg	Anti-war protest Yekaterinburg 26/02/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Sverdlovsk Regional Court 04/05/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 26/02/2022 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
5.	33213/22 06/06/2022	**Rustam Aukhatovich KHABIBULIN** 1965	Aleksey Vladimirovich Bushmakov Yekaterinburg	Anti-war protest Yekaterinburg 26/02/2022	article 20.2 § 5 of CAO	30 hours of community work	Sverdlovsk Regional Court 11/05/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 26/02/2022 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
6.	34952/22 27/06/2022	**Danil Mikhitarovich SEMENOV** 1994	Natalya Andreyevna Baranova Moscow	Fair elections rally Moscow 20/09/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 19/01/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 28/09/2021 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expense per applicant/ household (in euros)[i]
7.	36112/22 13/07/2022	**Tatyana Ivanovna YESHCHEULOVA** 1961	Darya Dmitriyevna Aksenova Kolomna	Anti-war protest Moscow 25/02/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 13/04/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 25/02/2022 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
8.	36352/22 13/07/2022	**Leontiy Vladimirovich VLADIMIROV** 1992	Darya Dmitriyevna Aksenova Kolomna	Anti-war protest Moscow 06/03/2022	article 20.2 § 6.1 of CAO	detention of 10 days	Moscow City Court 14/03/2022	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
9.	36361/22 13/07/2022	**Mikhail Aleksandrovich ARANOVSKIY** 1984	Darya Dmitriyevna Aksenova Kolomna	Anti-war protest Moscow 06/03/2022	article 20.2 § 6.1 of CAO	detention of 12 days	Moscow City Court 14/03/2022	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
10.	39108/22 26/07/2022	**Aleksandr Yuryevich YARKIN** 1996	Dmitriy Dmitriyevich Miropoltsev Kaltan	Anti-war protest Rostov-on-Don 06/03/2022	article 19.3 § 1 of CAO	detention of 15 days	Rostov Regional Court 07/04/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 06/03/2022 until 07/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000
11.	41854/22 19/08/2022	**Aleksandra Alekseyevna ZAPOLINA** 2000		Anti-war manifestation Nizhniy Novgorod 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 27/04/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 06/03/2022 until 07/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
12.	43068/22 20/08/2022	**Alena Vladimirovna GLAZER** 1986 **Yekaterina Vladimirovna GLAZER** 1988		Anti-war protest Perm 24/02/2022 Anti-war protest Perm 24/02/2022	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	fine of RUB 5,000 20 hours of community work	Perm Regional Court 31/05/2022 Perm Regional Court 18/05/2022	Art. 5 (1) - unlawful detention - escorting to the police station twice on 24/02/2022 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expense per applicant/ household (in euros)[i]
13.	43095/22 19/08/2022	**Artur Kamilovich SULTANOV** 1999		Anti-war protest Samara 27/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Samara Regional Court 21/04/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 27/02/2022 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
14.	44073/22 18/08/2022	**Anna Andreyevna ANTASHKEVIC** 1996		Anti-war protest Krasnoyarsk 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnoyarsk Regional Court 18/05/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 06/03/2022 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
15.	44209/22 19/08/2022	**Darya Andreyevna TEPLOUKHOVA** 1995	Aleksey Vladimirovich Bushmakov Yekaterinburg	Anti-war protest Yekaterinburg 26/02/2022	article 20.2 § 5 of CAO	fine of RUB 12,000	Sverdlovsk Regional Court 15/06/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 26/02/2022 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
16.	44220/22 19/08/2022	**Yevgeniya Dmitriyevna AKSENOVA** 1995	Aleksey Vladimirovich Bushmakov Yekaterinburg	Anti-war protest Yekaterinburg 26/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 27/04/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 26/02/2022 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
17.	44225/22 19/08/2022	**Maksim Rustamovich KHABIBULIN** 1988	Aleksey Vladimirovich Bushmakov Yekaterinburg	Anti-war protest Yekaterinburg 26/02/2022	article 20.2 § 5 of CAO	35 hours of community work	Sverdlovsk Regional Court 25/05/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 26/02/2022 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
18.	44229/22 18/08/2022	**Liliya Alekseyevna LEBED** 1990	Aleksey Vladimirovich Bushmakov Yekaterinburg	Anti-war protest Yekaterinburg 26/02/2022	article 20.2 § 5 of CAO	30 hours of community work	Sverdlovsk Regional Court 08/06/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 26/02/2022 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
19.	44263/22 19/08/2022	**Ilya Vasilyevich FEDOROV** 2001	Aleksey Vladimirovich Bushmakov Yekaterinburg	Anti-war protest Yekaterinburg 06/03/2022	article 20.2 § 5 of CAO	30 hours of community work	Sverdlovsk Regional Court 29/06/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 06/03/2022 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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20.	44558/22 30/08/2022	**Aleksandr Vladimirovich KISELEV** 1959	Darya Dmitriyevna Aksenova Kolomna	Anti-war protest Moscow 27/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 03/08/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 27/02/2022 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
21.	45167/22 05/09/2022	**Sergey Alekseyevich SHISHKOV** 1984	Viktor Valeryevich Kochenkov Izhevsk	Anti-war protest Izhevsk 27/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Udmurtia Republic 08/06/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 27/02/2022 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
22.	45577/22 05/09/2022	**Timur Ilgizovich YAGFAROV** 1994	Viktor Valeryevich Kochenkov Izhevsk	Anti-war protest Izhevsk 27/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Udmurtia Republic 15/06/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 27/02/2022 for compiling an offence report	4,000
23.	46433/22 15/09/2022	**Nina Sergeyevna VASHCHENKO** 2001	Darya Dmitriyevna Aksenova Kolomna	Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 13/07/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 06/03/2022 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
24.	46437/22 15/09/2022	**Alisa Byern MARK** 2001	Darya Dmitriyevna Aksenova Kolomna	Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 21/07/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 06/03/2022 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
25.	47522/22 08/09/2022	**Stepan Alekseyevich SEMENOV** 1998	Viktor Valeryevich Kochenkov Izhevsk	Anti-war protest Izhevsk 24/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Udmurtia Republic 15/07/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 24/02/2022 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
26.	47534/22 10/09/2022	**Roman Nikolayevich VESELKOV** 1988	Viktor Valeryevich Kochenkov Izhevsk	Anti-war protest Izhevsk 24/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Udmurtia Republic 06/06/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 24/02/2022 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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27.	50245/22 14/10/2022	**Sergey Alekseyevich IVANOV** 1992		Anti-war protest Moscow 24/02/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 15/06/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 24/02/2022 until 25/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
28.	51460/22 23/10/2022	**Valeriya Gavrilovna DANILOVA** 2001		Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 23/06/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 06/03/2022 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
29.	54276/22 12/10/2022	**Svetlana Anatolyevna VISELSKAYA** 1984		Anti-war protest Moscow 26/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 15/06/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 26/02/2022 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
30.	32269/23 07/08/2023	**Nikolay Konstantinovich GAVRILOV** 1992		Anti-war protest Moscow 06/03/2022	article 20.2 § 8 of CAO	fine of RUB 10,000	Moscow City Court 07/04/2023	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 06/03/2022 until 07/03/2022	4,000

[i] Plus any tax that may be chargeable to the applicants.